

25SMCV06047 25SMCV06047

County: los-angeles

Division: Civil Law and Motion

Department: J

Hearing date: 2026-06-30

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Case Number: 25SMCV06047 Hearing Date: June 30, 2026 Dept: J

TENTATIVE RULING:

motion to be relieved as counsel;

The court having read the papers
rules as follows:

The motion is DENIED WITHOUT PREJUDICE.

An attorney may move to be relieved as
counsel of record under Code of Civil Procedure section 284(2). The motion must
comply with the procedural requirements of California Rules of Court, rule
3.1362.

Counsel has shown good cause for
withdrawal. The sole defendant has filed for bankruptcy, which subjects any
recovery to the automatic stay under 11 U.S.C. section 362 and to a creditor
priority scheme. Continued representation of the plaintiff on a contingency
basis is therefore not reasonably practicable. Rules of Professional Conduct,
rule 1.16(b)(10).

The motion is procedurally deficient in two
respects.

First, counsel served the moving papers on
the client by mail but did not satisfy California Rules of Court, rule
3.1362(d)(1). When the client is served by mail, the supporting declaration
must state facts showing either that the service address is the client's

current address, or that it is the client's last known address and counsel was unable to locate a more current address after reasonable efforts made within 30 days before filing the motion. The declaration makes neither showing. It lists only the client's last known address. Sending papers to a last known address, without more, does not establish that the address is current.

Second, the proposed order does not specify all hearing dates as required by California Rules of Court, rule 3.1362(e). The lodged order lists only the May 19, 2026 Case Management Conference. That conference has been continued to June 30, 2026, and the court has set an Order to Show Cause re monetary sanctions and an Order to Show Cause re bankruptcy status for the same date. The order must reflect all currently scheduled hearings so that the client is informed of them.

Counsel is ordered to correct these deficiencies and to file corrected papers before the next hearing. If the deficiencies are corrected before the hearing, the motion will be granted and the parties need not appear.

Counsel is to give notice. Service may be made electronically pursuant to California Rules of Court, rule 3.1362(d).